



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36017087

Date: JAN. 24, 2025

Appeal of Vermont Service Center Decision

Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Abused Spouse of U.S. Citizen or Lawful Permanent Resident)

The Petitioner seeks immigrant classification as an abused spouse of a U.S. citizen. See section 204(a)(1)(A)(iii) of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1154(a)(1)(A)(iii). Under the Violence Against Women Act (VAWA), an abused spouse may self-petition as an immediate relative rather than remain with or rely upon an abuser to secure immigration benefits.

The Director of the Vermont Service Center denied the Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Abused Spouse of U.S. Citizen or Lawful Permanent Resident) (VAWA petition), finding the Petitioner did not establish that she resided with her U.S. citizen spouse; has been battered by, or has been the subject of extreme cruelty perpetrated by, her U.S. citizen spouse during the qualifying relationship; and entered into the qualifying relationship in good faith. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

A petitioner who is the spouse of a U.S. citizen may self-petition for immigrant classification if they demonstrate, in part, that they were in a qualifying relationship as the spouse of a U.S. citizen, are eligible for immigrant classification based on this qualifying relationship, entered into the marriage with the U.S. citizen spouse in good faith, and were battered or subjected to extreme cruelty perpetrated by the petitioner's spouse. Section 204(a)(1)(A)(i)-(iii) of the Act. The petition cannot be approved if the petitioner entered into the marriage to the abuser for the primary purpose of circumventing the immigration laws. 8 C.F.R. § 204.2(c)(1)(ix); see also 3 USCIS Policy Manual D.2(C), <https://www.uscis.gov/policy-manual> (explaining, as guidance, that the self-petitioning spouse must show that at the time of the marriage, they intended to establish a life together with the U.S. citizen spouse).

Evidence of a good faith marriage may include documents showing that one spouse has been listed as the other's spouse on insurance policies, property leases, income tax forms, or bank accounts; evidence regarding their courtship, wedding ceremony, shared residence, and experiences; birth certificates of any children born during the marriage; police, medical, or court documents providing information about the relationship; affidavits from individuals with personal knowledge of the relationship; and any other credible evidence. 8 C.F.R. § 204.2(c)(2)(i), (vii). Although we must consider any credible evidence relevant to the VAWA petition, we determine, in our sole discretion, what evidence is credible and the weight to give to such evidence. Section 204(a)(1)(J) of the Act; 8 C.F.R. § 204.2(c)(2)(i).

II. ANALYSIS

The Petitioner's evidence in support of her good faith marriage lack detail and contain inconsistencies. As a result, she has not established she entered into her marriage in good faith. As our determination on this issue is dispositive of her appeal, we decline to reach and hereby reserve the Petitioner's other appellate arguments, including that the Director erred in determining that she did not establish she was battered or had been the subject of extreme cruelty by her U.S. citizen spouse and had jointly resided with her spouse. See *INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) ("courts and agencies are not required to make findings on issues the decision of which is unnecessary to the results they reach"); see also *Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where an applicant is otherwise ineligible).

The Petitioner entered the United States on a student visa in 2007. According to a marriage certificate submitted below, the Petitioner married S-W-¹ her U.S. citizen spouse, in [REDACTED] 2012. According to the VAWA petition, she and S-W- began residing together on January 1, 2012 and last lived together on August 1, 2012. In August 2012, after they were no longer residing together, S-W- filed a Form I-130, Petition for Alien Relative, on the Petitioner's behalf, and the Petitioner concurrently filed Form I-485, Application to Register Permanent Residence or Adjust Status (adjustment application), both of which were denied in December 2012 because S-W- did not attend the adjustment application interview.²

In May 2017, the Petitioner filed her first VAWA petition and another adjustment application. According to this adjustment application, she has three children born in the United States in [REDACTED] 2009, [REDACTED] 2013, and [REDACTED] 2015, all with the same last name, N-. The Director of the Vermont Service Center denied the VAWA petition in January 2019, finding the Petitioner did not establish that she has been battered by, or has been the subject of extreme cruelty perpetrated by, her U.S. citizen spouse during the qualifying relationship and entered into the qualifying relationship in good faith.³ The Petitioner appealed the denial of the VAWA petition and we dismissed the appeal in February 2020, concluding the Petitioner had not established she entered into a good faith marriage with her U.S. citizen spouse.

¹ Initials are used to protect the privacy of individuals.

² According to the denial letter for the adjustment application, S-W- was unable to attend the adjustment interview because he was incarcerated. His incarceration is unrelated to the Petitioner's VAWA petition.

³ The Director also determined the Petitioner was not credible because she admitted to making false claims to U.S. citizenship and altering a government instrument to obtain employment.

The Petitioner filed a second VAWA petition, which is the subject of the instant appeal. In denying the VAWA petition, the Director noted that the VAWA petition is supported by copies of the same evidence that the Petitioner submitted in her previously filed VAWA petition and determined that the Petitioner had not established eligibility for VAWA classification for the same reasons stated in the Director's January 2019 denial. The Director also detailed additional insufficiencies and inconsistencies in the record regarding the Petitioner's claim on the VAWA petition that she lived with S-W- from January 1, 2012 to August 1, 2012 at an address in [REDACTED] Kansas (marital address), which the Director concluded undermined the credibility of the Petitioner's evidence.

On appeal, the Petitioner has not established that she entered into her marriage with S-W- in good faith, particularly in light of the unresolved inconsistencies remaining in the record. For instance, the record includes evidence indicating that she was living with her children's father, P-N-, both prior to and after marrying S-W- in [REDACTED] 2012, and she had two of her children with P-N- in 2013 and 2015, while still legally married to S-W-. Additionally, although the Petitioner claimed she and S-W- resided together starting on January 1, 2012, the lease contract solely naming her as lessee of the marital residence was executed later on January 31, 2012, and an addendum document indicating that S-W- was added to her lease is dated months later in April 2012. Further, a resident ledger from [REDACTED] [REDACTED] has P-N- leasing the marital address from February 2011 through March 2012, demonstrating P-N- was living at the marital address with the Petitioner through March 2012, when she claimed to be living with S-W- and after her marriage to S-W-. These inconsistencies in and of themselves undermine the Petitioner's claim that she entered her marriage with S-W- in good faith. On appeal, the Petitioner does not address or submit evidence to resolve these inconsistencies, although they were specifically noted in the Director's decision denying the Petitioner's first VAWA petition and our subsequent dismissal of her appeal. Moreover, even setting these inconsistencies aside, based on our de novo review of the evidence, the Petitioner's evidence does not support her good faith marriage.

The Petitioner argues that the Director's decision did not make an adverse credibility determination, like the decision in prior proceedings, and we should look at her personal statement with this new lens. However, the Director specifically noted that inconsistencies in the evidence, including with respect to her good faith marriage claim, called into question the credibility of the evidence. To the extent the Petitioner asserts that the Director should have given more weight to her statement, as discussed above, USCIS determines, in its sole discretion, what evidence is credible and the weight to give to such evidence. Section 204(a)(1)(J) of the Act; 8 C.F.R. § 204.2(c)(2)(i). We conclude the Director properly considered and weighed the Petitioner's statement, dated November 2020 and submitted with the VAWA petition. The Director noted that the statement described how the Petitioner met S-W- at a grocery shop, they exchanged numbers, spoke on the phone a few times, and took their sons to play at the mall and then got married in [REDACTED] 2012 in a small church with her sister, her friend, and their two sons in attendance. However, the Director correctly determined the Petitioner's statement lacked sufficient detail to establish her good faith intentions for entering into their marriage. For example, the statement does not describe when the Petitioner met S-W-, the length of their courtship, details of their courtship and wedding ceremony, whether they moved in together and when, or their shared experiences. See 8 C.F.R. § 204.2(c)(2)(i), (vii) (describing evidence of good faith marriage as including details regarding courtship, wedding ceremony, shared residence, and experiences).

The Petitioner also asserts the Director should have considered the evidence that did not have credibility concerns in the aggregate. Specifically, she argues the Director did not consider that her mother-in-law called her a “committed wife” in a statement and her family sent emails congratulating her marriage; she went to visit her husband in jail on two occasions after he was incarcerated in [REDACTED] 2012; she discussed her mother-in-law in therapy, which she would not have done if her marriage was “fake;” she granted S-W- permission to pick up her son; they shared a cable bill and auto insurance policy; and the Petitioner listed S-W- as an emergency contact at work. However, the Director did consider this evidence and noted specific evidentiary deficiencies, for example, correctly noting that the shared cable bill only named the Petitioner as the account holder, and the letters and emails, including her mother-in-law’s statement, submitted in support lacked detail regarding the nature of the relationship, common interests, shared experiences, courtship or marriage ceremony. The Petitioner also argues that the Director required a level of detail in the letters that is not natural. However, Evidence of good faith marriage may include affidavits from individuals with personal knowledge of the relationship. 8 C.F.R. § 204.2(c)(2)(i), (vii). Here, the letters and emails submitted in support of the Petitioner’s claim that she entered the marriage in good faith do not contain probative details demonstrating the authors had personal knowledge of the Petitioner and S-W-’s relationship, as they only expressed congratulations, or made general statements about the couple’s happiness, dependability and/or caring nature. We therefore agree with the Director that the emails and letters are not sufficient to establish the Petitioner’s good faith marital intentions.

We acknowledge the Petitioner’s remaining evidence relating to her good faith marriage claim. However, the evidence showing she visited S-W- in prison on a total of two occasions, discussed her mother-in-law in therapy, and added S-W- as an emergency contact at work in June 2012, months after their marriage, do not provide sufficient insight into the Petitioner’s good faith marital intentions. In addition, the permission form granting S-W- permission to pick up her son lists him as the eleventh contact in a form that only asks for ten names and is dated August 2011, before her marriage to S-W-. The record does not indicate if the Petitioner had met S-W- or if her relationship with S-W- even existed in August 2011. Accordingly, the evidence in aggregate, including the Petitioner’s statement, the various emails and letters and the remaining documentary evidence, are not sufficiently probative to establish by a preponderance of the evidence that the Petitioner entered into her marriage in good faith, particularly in light of the unresolved inconsistencies identified in the record.

III. CONCLUSION

The Petitioner has not demonstrated by a preponderance of the evidence that she is eligible for immigrant classification under VAWA.

ORDER: The appeal is dismissed.